BY ORDER OF THE COMMANDER
TRAVIS AIR FORCE BASE (AMC)

TRAVIS AIR FORCE BASE
INSTRUCTION

31-213

16 NOVEMBER 2021

Security

TRAVIS AFB ARMED FORCES DISCIPLINARY CONTROL BOARD AND OFF- INSTALLATION LIAISON OPERATIONS

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OPR: 60 SFS/CC

Certified by: 60 AMW/JA
(Lt Col Charles Tenney)
Pages: 17

This instruction implements Air Force Joint Instruction (AFJI) 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, and prescribes procedures for the establishment, operation, and coordination of the Armed Forces Disciplinary Control Board (AFDCB). This instruction does not address the use of off-installation liaisons and operations. This instruction applies to all personnel assigned or attached to, or supported by, Travis Air Force Base. This publication applies to Air Force Reserve Command (AFRC) Units. Failure to observe the specific prohibitions and requirements contained in (**Paragraph 9.11**) is a violation of Article 92, *Uniform Code of Military Justice* (UCMJ). Violations of this provision can be prosecuted under Article 92 of the UCMJ, as well as any other applicable articles of the UCMJ, when appropriate. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility using the AF IMT 847, *Recommendation for Change of Publication*; route AF IMT 847s from the field through the appropriate functional chain of command.

SUMMARY OF CHANGES

This publication has been revised. Responsibilities of the Board Chair, Defense Force Commander, Commanders, Board Recorder, Staff Judge Advocate, and Board Advisors were added. 821 CRG/CC, 60 MXG/CC, and 60 AMW/CC were added as board members.

1. Authority. The 60th Air Mobility Wing Commander (60 AMW/CC) is responsible for maintaining the health, safety, welfare, morale and discipline of 60 AMW personnel and their families. To carry out this responsibility, the 60 AMW/CC is authorized under AFJI 31-213 to declare establishments, businesses and areas "off-limits" to military personnel where there exists sufficient cause to believe that service members may be exposed to or victimized by crime-conducive conditions. This authority may be delegated to the 60 AMW/CV, as determined by the 60 AMW/CC.

2. Purpose. The purpose of the AFDCB is to assist the 60 AMW/CC in eliminating undesirable conditions and situations that may adversely affect military personnel and their families. The goal of the AFDCB is correction of the deficiency by the off-base establishment, business or area. However, when the deficiency is not or cannot be corrected, the AFDCB may recommend the 60 AMW/CC place the establishment, business or area "off-limits" to military personnel.

3. Function. The AFDCB studies and takes appropriate action on all reports of conditions that may adversely affect military personnel and their families. These activities include, but are not limited to, prostitution, sexually transmitted disease, liquor violations, alcohol and drug abuse, presence of illegal drugs and paraphernalia, racial and other discriminatory practices, criminal or illegal activities involving cults or hate groups, illicit gambling, areas susceptible to terrorist activity and unfair commercial or consumer practices.

3.1. The AFDCB will immediately forward to 60 AMW/CC any reported circumstances involving discrimination based on race, color, sex, religion, age, or national origin.

4. Responsibilities.

4.1. AFDCB President. The Vice Commander, 60th Air Mobility Wing (60 AMW/CV) is appointed as the AFDCB President and will:

4.1.1. Schedule and preside over all meetings conducted at least quarterly.

4.1.2. Specify whether the meetings will be open or closed. Normally proceedings are closed, but may be open to the public when circumstances warrant.

4.1.3. Consider participation by civil agencies or individuals in meetings as observers or witnesses when they are aware of problem areas.

4.1.4. Provide an agenda to each voting member.

4.1.5. Coordinate with appropriate civil authorities on problems or adverse conditions in the AFDCB's area of jurisdiction.

4.1.6. Forward off-limits recommendations to the 60 AMW/CC for decision.

4.2. Defense Force Commander. The Defense Force Commander will:

4.2.1. Develop off-installation enforcement policies.

4.2.2. Provide administrative support and coordinate entry for civilian guests and proprietors.

4.3. Board Recorder. 60 SFS/S-2I will serve as the board recorder and will:

4.3.1. Ensure records, minutes, and correspondence are prepared, distributed and maintained per this instruction, AFJI 31-213, and the Air Force Records Information Management System.

4.3.2. Provide a copy of the meeting minutes to voting members.

4.3.3. Coordinate with 60 AMW/PA and voting members to publish public interest and education articles, draft resolutions and maintain all correspondence.

4.3.4. Ensure correspondence is delivered to the proprietor of an off-base establishment, business or area via certified mail, return receipt requested.

4.4. 60 AMW Judge Advocate. The 60 AMW/JA will:

4.4.1. Advise members regarding legal propriety of potential actions.

4.4.2. Review decisions, documentation, and correspondence for legal sufficiency and compliance with AFJI 31-213 and this instruction.

4.5. 60 AMW/PA. 60 AMW/PA will:

4.5.1. Compile a list of off-limits establishments, businesses and areas to be published using command and media channels.

4.5.2. Manage media interviews and releases.

4.6. Commanders. All commanders will:

4.6.1. Be aware of the AFDCB mission and services provided.

4.6.2. Ensure personnel assigned are briefed on off-limits areas.

5. Board Composition.

5.1. Voting members, or respective designees, are:

5.1.1. 60th Air Mobility Wing Commander (60 AMW/CV; Chair).

5.1.2. 60th Mission Support Group Commander (60 MSG/CC).

5.1.3. 60th Air Mobility Wing Judge Advocate (60 AMW/JA).

5.1.4. 60th Operations Group Commander (60 OG/CC).

5.1.5. 60th Medical Group Commander (60 MDG/CC).

5.1.6. 60th Maintenance Group Commander (60 MXG/CC).

5.1.7. 60th AMW Command Chief (60 AMW/CCC).

5.1.8. 821st Contingency Response Group Commander (821 CRG/CC).

5.1.9. 349th Mission Support Group Commander (349 MSG/CC).

5.1.10. 60th Air Mobility Wing Chaplain (60 AMW/HC).

5.2. Advisory members, or respective designees, are:

5.2.1. 60th Security Forces Security Commander (60 SFS/CC).

5.2.2. 60th Air Mobility Wing Equal Opportunity (60 AMW/EO).

5.2.3. 60th Air Mobility Wing Inspector General (60 AMW/IG).

5.2.4. 60th Air Mobility Wing Public Affairs (60 AMW/PA).

5.2.5. 60th Air Mobility Wing Safety (60 AMW/SE).

5.2.6. Air Forces Office of Special Investigations (AFOSI), Detachment 303 representative.

6. Complaints.

6.1. Military personnel and their family members are encouraged to file, with the AFDCB, complaints they have against an off-base establishment, business or area. Complaints should be in writing and any relevant documents attached. See, **Attachment 2**.

7. Meetings.

7.1. At a minimum, meetings are held quarterly. Meetings may be held more frequently, should there be an emergent need to place an establishment, business or area off-limits.

7.1.1. A majority of voting members constitutes a quorum for meetings.

8. Attendance of Observers or Witnesses.

8.1. The AFDCB President may invite other military or civilian persons or organization representatives as witnesses or observers if they are necessary or appropriate to the meetings. These visitors may assist in addressing installation or command issues, but will not vote on any action or procedure. Invited witnesses and observers will be listed in the minutes of the meeting.

9. Minutes.

9.1. The meeting minutes will serve as an official record of meetings. Verbatim transcripts of meetings are not required. See, **Attachment 3**.

9.1.1. The reasons for recommending approval or removal of an off-limits restriction, to include a complete address of the establishment, business or area involved, will be annotated.

9.1.2. When an off-limits recommendation is made, the minutes will show the procedural steps followed in reaching the decision.

9.1.3. A report containing the results of any investigation or inspection conducted on an establishment, business or area will be submitted at the next meeting and summarized in the minutes.

9.2. Minutes and recommendations will be forwarded to 60 AMW/CC for approval.

9.3. Distribution of the minutes will be limited to 60 AMW/CC and each voting member.

9.3.1. Minutes are subject to release and disclosure in accordance with applicable publications and directives. Civilian and government agencies that have an interest in the functions of the AFDCB may receive a copy if deemed appropriate in accordance with the Freedom of Information Act (FOIA) or other publication or directive. Civilian and military

observers and witnesses may also receive a copy if deemed appropriate in accordance with the FOIA or other publication or directive.

10. Off-Limits Establishments, Businesses and Areas.

10.1. It is essential that the AFDCB does not act arbitrarily. Actions must not be of a punitive nature. The AFDCB should work closely with proprietors to seek resolution through mutually cooperative efforts.

10.2. When the AFDCB concludes that adverse conditions exist, a written notice should be sent to the individual or business responsible. The notice will specify a reasonable amount of time for the condition or situation to be resolved and provide proprietors an opportunity to present any relevant information for consideration. See, **Attachment 4**.

10.3. If the proprietor takes remedial action to correct adverse conditions, the AFDCB President should send a Letter of Appreciation recognizing this cooperation. See, **Attachment 5**.

10.4. If adverse conditions are not corrected, the proprietor may be invited to the AFDCB to explain why the establishment, business or area should not be placed off-limits. Proprietors may designate, in writing, a representative to appear on their behalf. See, **Attachment 6**.

10.5. In cases where proprietors have been invited, the AFDCB President will:

10.5.1. Review inspection reports, findings and decisions of the previous meetings.

10.5.2. Present a brief summary of the complaint. Afford the proprietor an opportunity to present matters in defense.

10.5.3. Invite those present to question the proprietor.

10.5.4. After the questioning period, allow the proprietor the opportunity to make a final statement before being dismissed.

10.6. Deliberations on recommended actions will be in closed session.

10.7. Forward recommendations, to the 60 AMW/CC, to place an establishment, business or area off-limits only after a thorough investigation and inspection into the facts and circumstances surrounding the alleged adverse condition. Include substantive information, as applicable.

10.8. When recommendations are approved, a letter will be sent to the proprietor informing them that an off-limits restriction has been imposed. See, **Attachment 7**.

10.9. Military members are prohibited from entering establishments, businesses or areas declared off-limits by 60 AMW/CC in accordance with AFJI 31-213 and this instruction. Violations may subject the member to disciplinary action under Article 92 of the UCMJ, or any other applicable article of the UCMJ, as appropriate.

11. Temporary Off-Limits Establishments and Areas.

11.1. In emergencies, where sufficient cause exists, commanders may declare establishments, businesses and areas temporarily off-limits to personnel of their respective commands.

11.2. Commanders must immediately notify 60 AMW/CC and the AFDCB President of such an emergency declaration. Detailed justification for the emergency declaration will be

provided to the AFDCB. In turn, the AFDCB will act upon these emergency declarations as a first priority.

12. Removal of Off-Limits Restrictions.

12.1. There is not a set time period for how long an off-limits restriction will remain in effect. The adequacy of corrective action, taken by the proprietor, will determine when the restriction can be removed. As a matter of policy, a change of ownership, management, or name of the establishment, business or area does not revoke the off-limits restriction.

12.2. Proprietors may submit to the AFDCB President, at any time, a petition for off-limits restrictions to be removed. Petitions must be in writing and include a detailed report of action taken to eliminate the condition or situation that caused imposition of the restriction.

12.3. The AFDCB will review, discuss and potentially investigate corrective actions taken. Once the review is complete, the AFDCB President will recommend, to the 60 AMW/CC, removal or continuation of an off-limits restriction.

12.3.1. A letter of notification for continuance of the off-limits restriction should be sent to the proprietor if 60 AMW/CC does not remove the off-limits restriction. See, **Attachment 8**.

12.3.2. A letter of notification of the removal of the off-limits restriction should be sent to the proprietor if 60 AMW/CC removes the off-limits restriction. See, Attachment **9** or **10**.

13. Media.

13.1. AFDCB matters are considered sensitive. There will not be a media releases in connection with meetings. However, when proceedings are open to the public, media personnel may attend as observers.

COREY A. SIMMONS, Colonel, USAF
Commander, 60th Air Mobility Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFJI 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations*, 27 July 2006

AFMAN 33-322, *Records Management and Information Governance Program*, 22 March 2020

Article 92, *Uniform Code of Military Justice* (10 U.S.C. Section 892)

DOD5400.7_AFMAN 33-302, *Freedom of Information Act Program,* 25 April 2018

Adopted Form

AF Form 847, *Recommendation for Change of Publication*, 22 September 2009

Abbreviations and Acronyms

AF—Air Force

AFDCB—Armed Forces Disciplinary Control Board

AFTC—Air Force Test Center

AFI—Air Force Instruction

AFJI—Air Force Joint Instruction

AFMAN—Air Force Manual

AFOSI—Air Force Office of Special Investigations

AFRIMS—Air Force Records Information Management System

CC—Commander

CD—Deputy Commander

DoD—Department of Defense

EO—Equal Opportunity

FOIA—Freedom of Information Act

HC—Chaplain

IG—Inspector General

JA—Judge Advocate

OPR—Office of Primary Responsibility

PA—Public Affairs

RDS—Records Disposition Schedule

SE—Safety

UCMJ—Uniform Code of Military Justice

Attachment 2

COMPLAINT

Figure A2.1. Complaint.

(Your Name/Rank)
(Address)
(Duty Phone/Home Phone)

President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB CA 94535

SUBJECT: Complaint Regarding: (Name of Establishment)

1. Name, address and phone number of the establishment, business, organization, club, etc., with which you have a complaint. Name(s) and position or title of the individual(s) representing the establishment.

2. Type of complaint (racial discrimination, criminal activity, consumer issues, etc.).

3. Date of incident(s).

4. Significant facts (use separate sheet if necessary).

5. What relief do you want from the establishment and/or what condition do you believe should be corrected?

6. Please be aware that you may be a potential witness in the Armed Forces Disciplinary Control Board Process, and your name may be subject to release under the Freedom of Information Act (FOIA).

(Your Signature/Date)

Attachment 3

SAMPLE OF MINUTES

Figure A3.1. Sample of Minutes, Pg1.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

MEMORANDUM FOR 60 AMW/CV Date

FROM: Armed Forces Disciplinary Control Board

SUBJECT: AFDCB Meeting Minutes – (*date*)

1. Pursuant to authority contained in AFJI 31-213, *Armed Forces Disciplinary Control AFDCBs and Off-Installation Liaison and Operations*, the Travis Armed Forces Disciplinary Control convened at (place), (date).

2. The following voting members were present: (list names, titles, and addresses).

3. The following non-voting members were present: (list names, titles, and addresses).

4. The following members were absent: (list names, titles, and addresses).

5. The following observers or witnesses were present: (list names, titles, and addresses).

6. Order of business:

a. Call to order.

b. Welcome.

c. Introduction of members and guests.

d. Explanation of the purpose of the AFDCB meeting.

e. Reading of minutes.

f. Unfinished business.

g. New business.

Figure A3.2. Sample of Minutes, Pg2.

h. Closed deliberations session.

i. Recommendations.

(1) List of areas and establishments being placed in an off-limits restriction. Include the complete name and address (or adequate description of the area) of any establishment.

(2) List of areas and establishments being removed from off-limits restrictions. Include the complete name and address (or adequate description of the area) of any establishment listed.

(3) Other matters or problems of concern.

j. Time, date, and place for next AFDCB meeting.

k. Adjournment of the AFDCB.

(AFDCB President or Designee's name)

(Rank, branch of service)
Armed Forces Disciplinary Control Board

Approved:
(AFDCB President's name)
(Rank, branch of service)
President, Armed Forces Disciplinary Control Board

Approved/Disapproved:
(60th Air Mobility Wing Commander's name)
(Rank, branch of service)

Attachment 4

LETTER OF NOTIFICATION SAMPLE

Figure A4.1. Letter of Notification Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

It has come to the attention of the Armed Forces Disciplinary Control Board that certain conditions reported at your establishment may adversely affect the health, safety, welfare, morale and discipline of members of the Armed Forces.
The AFDCB is initiating action to determine whether your establishment (area) should be placed off-limits to members of the Armed Forces if (cite conditions) are not corrected by (date). A representative of the AFDCB will visit your establishment to determine if steps have been taken to correct the conditions outlined above.

Sincerely

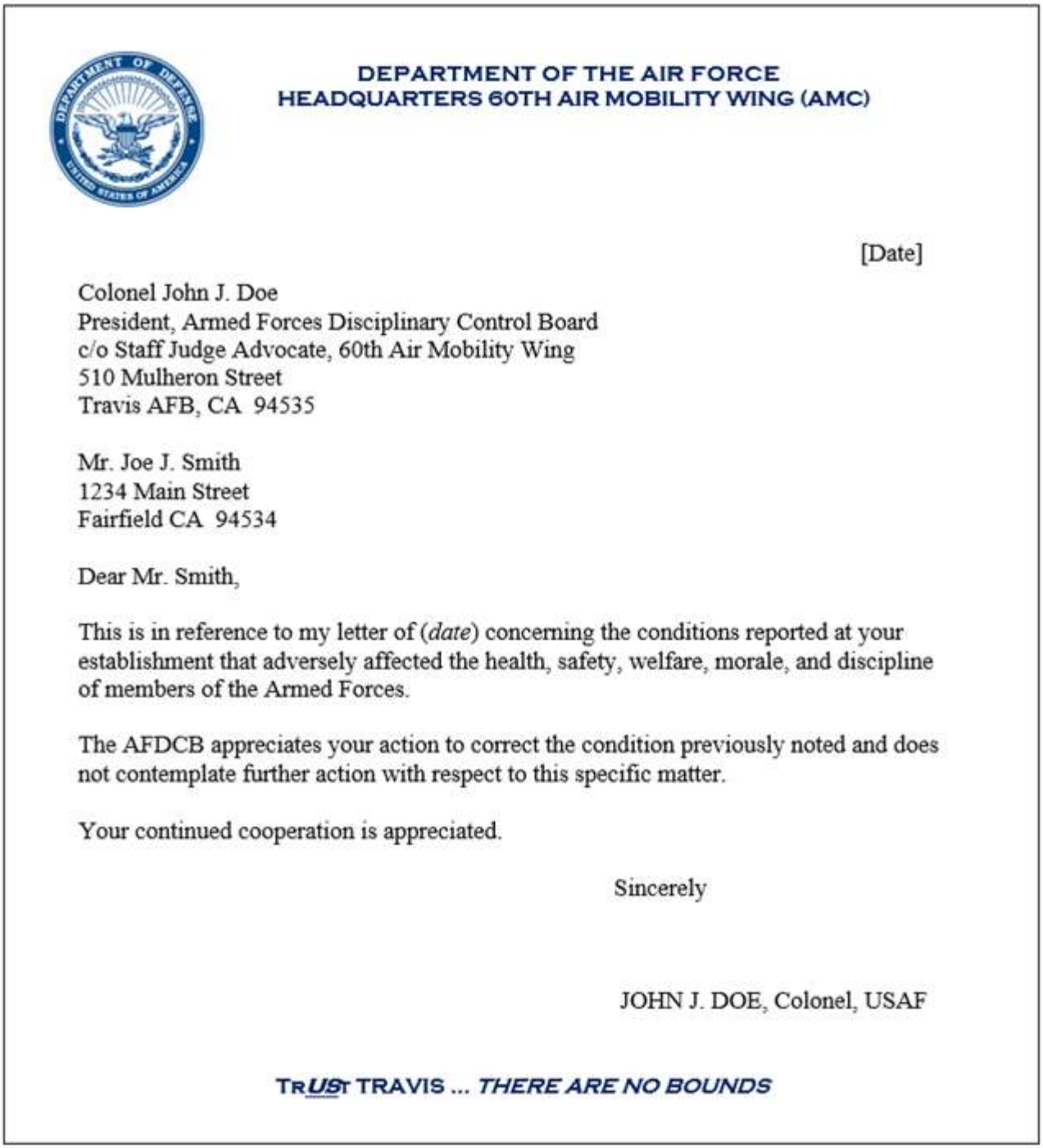
JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 5

LETTER OF APPRECIATION SAMPLE

Figure A5.1. Letter of Appreciation Sample.



DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

This is in reference to my letter of (*date*) concerning the conditions reported at your establishment that adversely affected the health, safety, welfare, morale, and discipline of members of the Armed Forces.

The AFDCB appreciates your action to correct the condition previously noted and does not contemplate further action with respect to this specific matter.

Your continued cooperation is appreciated.

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 6

LETTER OF INVITATION SAMPLE

Figure A6.1. Letter of Invitation Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

This is in reference to my letter of (*date*) concerning the conditions reported at your establishment that adversely affected the health, safety, welfare, morale, and discipline of members of the Armed Forces.

Information has been received by the Armed Forces Disciplinary Control Board (AFDCB), which indicates you have not taken adequate corrective action to eliminate the reported condition. Reports presented to the AFDCB indicate (*list and describe conditions*).

You are advised that the AFDCB will initiate action to determine whether your establishment should be declared off-limits to members of the Armed Forces. You may appear in person, with or without counsel, before the AFDCB at its next scheduled meeting on (*date, time, and place*). At that time, you will have the opportunity to refute the allegation, or to inform the AFDCB of any remedial action you have taken or contemplate taking to correct the condition. It is requested you inform the AFDCB President if you plan to attend.

Any questions regarding this matter may be addressed to Lt Col Doe, (*address*). Every effort will be made to clarify the matter for you.

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 7

OFF-LIMITS APPROVAL LETTER SAMPLE

Figure A7.1. Off-Limits Approval Letter Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

This letter is to inform you that your establishment has been declared off-limits to members of the Armed Forces effective (*date*). Members of the Armed Forces are prohibited from entering your establishment (*premises*) as long as this order is in effect. This action is being taken because of (*state the conditions*) which are detrimental to the (*health, safety, welfare, morale, and discipline*) of members of the Armed Forces.

This restriction will remain in effect indefinitely in accordance with established Air Force policy. Removal of the restriction will be considered by the Armed Forces Disciplinary Control Board upon presentation of information that satisfactory corrective action has been taken.

Correspondence appealing this action may be submitted to the President, Armed Forces Disciplinary Control Board, (*address*).

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 8

LETTER OF NOTIFICATION AND CONTINUANCE OF OFF-LIMITS RESTRICTIONS AFTER APPEARANCE BEFORE THE AFDCB SAMPLE

Figure A8.1. Letter of Notification and Continuance of off-Limits Restrictions after Appearance before the AFDCB Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

The Armed Forces Disciplinary Control Board (AFDCB) did not favorably consider your request for removal of the off-limits restriction now in effect at your establishment.

This decision does not preclude further appeals or appearances before the AFDCB at any of its scheduled meetings. Correspondence pertaining to this matter should be addressed to the President, Armed Forces Disciplinary Control Board, (*address*).

Correspondence appealing this action may be submitted to the President, Armed Forces Disciplinary Control Board at the above address.

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 9

LETTER OF REMOVAL OF OFF-LIMITS RESTRICTION SAMPLE

Figure A9.1. Letter of Removal of off-Limits Restriction Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

This letter is to inform you that the off-limits restriction against (*name of establishment*) is removed effective (*date*). Members of the Armed Forces are permitted to patronize your establishment as of that date.

The corrective actions taken in response to the concerns of the Armed Forces Disciplinary Control Board are appreciated.

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*

Attachment 10

NOTIFICATION OF REMOVAL OF OFF-LIMITS RESTRICTION SAMPLE

Figure A10.1. Notification of Removal of off-Limits Restriction Sample.

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS 60TH AIR MOBILITY WING (AMC)

[Date]

Colonel John J. Doe
President, Armed Forces Disciplinary Control Board
c/o Staff Judge Advocate, 60th Air Mobility Wing
510 Mulheron Street
Travis AFB, CA 94535

Mr. Joe J. Smith
1234 Main Street
Fairfield CA 94534

Dear Mr. Smith,

This letter is to inform you that your request for removal of the off-limits restriction now in effect at (*name of establishment*) was favorably considered by the Armed Forces Disciplinary Control Board (AFDCB).

This restriction will be removed effective (*date*). Members of the Armed Forces will be permitted to patronize your establishment as of that date.

The corrective actions taken in response to the concerns of the AFDCB are appreciated.

Sincerely

JOHN J. DOE, Colonel, USAF

TRUST TRAVIS ... *THERE ARE NO BOUNDS*